

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
ROLAND HAYES

Plaintiff,

-against-

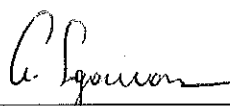
THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
JOSE VASQUEZ (SHIELD #7775), "JOHN DOES" #
1-2 the names being unknown but whom are intended
to be NYPD Officers who arrested the plaintiff on
March 31, 2104.Defendants.
-----XFILED ON:
INDEX NO.:PLAINTIFF DESIGNATES
NEW YORK COUNTY AS THE
PLACE OF TRIALBASIS OF VENUE IS PLACE OF
OCCURRENCESUMMONS

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not entered with this summons, to serve a notice of appearance, on the plaintiff's attorney, within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: Brooklyn, NY
March 26, 2015

Yours, etc.



HELD & HINES, L.L.P.
By: A. Tommy Sgouras, Esq.
Attorneys for Plaintiff
2004 Ralph Avenue
Brooklyn, NY 11234
(718) 531-9700

Defendants' Addresses:

THE CITY OF NEW YORK and
THE NEW YORK CITY POLICE
DEPARTMENT
Office of the Corporation Counsel
100 Church Street
New York, NY 10007

POLICE OFFICER JOSE VASQUEZ (SHIELD #7775)
"JOHN DOES" 1-2
NYPD: 25th PRECINCT
120 E 119th Street
New York, NY 10035

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ROLAND HAYES,

Plaintiff,

-against-

INDEX NO.:

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JOSE
VASQUEZ (SHIELD #7775), "JOHN DOES" # 1-2 the
names being unknown but whom are intended to be
NYPD Officers who arrested the plaintiff on March 31,
2104.

VERIFIED COMPLAINT

Defendants.

-----X

Plaintiff, ROLAND HAYES, by his attorneys, HELD & HINES, L.L.P., complaining of
the Defendants alleges, upon information and belief, as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR UNLAWFUL
ARREST AND IMPRISONMENT**

1. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK,
(hereinafter referred to as "THE CITY") was and still is a municipal corporation duly organized
and existing under the virtue of the laws of the State of New York.

2. That at all times hereinafter mentioned, defendant, THE CITY, operated,
maintained, managed, and controlled THE NEW YORK CITY POLICE DEPARTMENT
(hereinafter referred to as "NYPD").

3. That at all times hereinafter mentioned, defendant NYPD was and still is an
agency, instrumentality, department, and/or governmental corporation under the direction and
control of the defendant THE CITY.

4. That at all times hereinafter mentioned, defendants, POLICE OFFICER JOSE

VASQUEZ, SHIELD # 7775 (hereinafter "P.O. VASQUEZ") was an employee of the NYPD who aided in the unlawful arrest of the plaintiff on March 31, 2014, and was employed by and acting pursuant to his authority, which was given to him by the defendants THE CITY and/or NYPD as a police officer.

5. That at all times hereinafter mentioned, defendant, P.O. VASQUEZ, was acting within the scope of his employment as a police officer employed by the NYPD.

6. That at all times hereinafter mentioned, defendant, P.O. VASQUEZ, was acting under color of law and authority as police officers employed by the NYPD.

7. That at all times hereinafter mentioned, defendant, P.O. VASQUEZ, arrested the plaintiff on March 31, 2014.

8. That at all times hereinafter mentioned, defendants, OFFICERS "JOHN DOES" # 1-2, the names being fictitious but whom are intended to be NYPD Officers, were employees of NYPD who aided in the unlawful arrest of the plaintiff on March 31, 2014, and were employed by and acting pursuant to their authority, which was given to them by the defendants THE CITY and/or NYPD as police officers.

9. That at all times hereinafter mentioned, defendants, OFFICER "JOHN DOES" # 1-2, the names being fictitious but who are intended to be NYPD officers who aided in the unlawful arrest of plaintiff on March 31, 2014, were acting within the scope of their employment as police officers employed by the NYPD.

10. That at all times hereinafter mentioned, defendants, OFFICER "JOHN DOES" # 1-2, the names being fictitious but who are intended to be NYPD officers who aided in the unlawful arrest of plaintiff on March 31, 2014, were acting under color of law and authority as police officers employed by the NYPD.

11. That at all times hereinafter mentioned, defendants, OFFICER "JOHN DOES" #1-2, the names being fictitious but who are intended to be NYPD officers, arrested the plaintiff on March 31, 2014.

12. That the arrest of plaintiff on March 31, 2014 was unlawful.

13. That this action was commenced within one year and ninety days after the cause of action accrued.

14. That on March 31, 2014 between the hours of approximately 7:00 p.m. and 8:30 p.m., the plaintiff, ROLAND HAYES, was lawfully and properly on the premises of a McDonald's restaurant located at or near the intersection between 125th Street and Lexington Avenue in New York, NY 10027 when defendants THE CITY and NYPD through its agents, servants, employees, including P.O. VASQUEZ and "JOHN DOES" #1-2, the names being fictitious but whom are intended to be NYPD officers who aided in the unlawful arrest of plaintiff on March 31, 2014, unlawfully detained, arrested, imprisoned and removed plaintiff within the scope of their employment with the NYPD.

15. That the aforesaid arrest and imprisonment was malicious, unlawful and not based upon a proper warrant, probable cause or legal cause, excuse or justification to seize the person and/or property of the plaintiff, and was therefore an unlawful arrest and detainment.

16. That defendants THE CITY and NYPD, through its agents, servants and/or employees, including the agents servants and/or employees of defendants CITY and/or NYPD including defendants P.O. VASQUEZ and "JOHN DOES" #1-2, who at that time were police officers of NYPD, acted, in bad faith and without probable cause in committing the aforesaid arrest and imprisonment of plaintiff.

17. At the time of his unlawful arrest and imprisonment, plaintiff had not committed

or attempted to commit any illegal act.

18. At the time of plaintiff's unlawful arrest, detainment and/or imprisonment, defendants knew or should have known, through exercise of proper procedure and reasonable investigation, that the aforementioned arrest and imprisonment were false and without probable cause.

19. The aforesaid false arrest and imprisonment caused plaintiff to suffer emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of wages, legal expenses, and damage to his reputation.

20. That by reason of the foregoing, plaintiff has been damaged in the amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION FOR MALICIOUS PROSECUTION

21. Plaintiff, ROLAND HAYES, repeats and reiterates the allegations contained in paragraphs "1" through "20" of the complaint as if fully set forth herein.

22. On or about March 31, 2015, the defendants intentionally, knowingly, recklessly, negligently and with malice caused the commencement of a criminal prosecution against the Plaintiff in the Criminal Court of the City of New York, County of New York, upon the filing of an accusatory instrument without probable cause.

23. In commencing and continuing the said malicious prosecution, defendants caused Plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.

24. The Plaintiff had not committed or attempted to commit any illegal act(s).

25. The Plaintiff had not given defendants THE CITY or NYPD, its agents, servants and/or employees, including defendants, the agents servants and/or employees of defendants THE CITY and/or NYPD including defendants P.O. VASQUEZ, "JOHN DOES" # 1-2, who at

that time were police officers, probable cause to believe that he had committed the falsely charged illegal acts.

26. The defendants knew, or should have known through the exercise of reasonable care and proper police procedure, that the said investigation into this matter was flawed and incomplete.

27. The defendants THE CITY and NYPD, its agents, servants and/or employees, including defendants the agents servants and/or employees of defendants THE CITY and/or NYPD including defendants P.O. VASQUEZ and "JOHN DOES" # 1-2, who at that time were police officers, willfully, negligently and wrongfully accused the Plaintiff of having committed acts in violation of the Penal Law of the State of New York.

28. The defendants THE CITY and NYPD, its agents, servants and/or employees, including defendants the agents servants and/or employees of defendants CITY and/or NYPD including defendants P.O. VASQUEZ and "JOHN DOES " # 1-2, who at that time were police officers, willfully, negligently and wrongfully continued to prosecute the Plaintiff for alleged violations of the Penal Law of the State of New York, even though the defendants knew or should have known of facts and circumstances that would have lead a reasonable person to conclude that the criminal complaint, upon which said criminal prosecution was based, contained material falsehoods and was otherwise improper, and that the continued prosecution of the Plaintiff was, therefore, improper under the circumstances.

29. On or about August 7, 2014 the plaintiff was acquitted of all criminal charges.

30. As a result of the malicious prosecution, the Plaintiff was caused to suffer and continues to suffer severe emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of wages, legal expenses and damage to his reputation.

31. By reason of the foregoing, defendants are liable to plaintiff in an amount to be determined by the trier of fact, but exceeding the jurisdictional limitations of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT HIRING

32. Plaintiff, ROLAND HAYES, repeats and reiterates the allegations contained in paragraphs "1" through "31" as if they were more fully set forth at length herein.

33. The actions of defendants THE CITY and NYPD, through its agents, servants and/or employees including P.O. VASQUEZ and "JOHN DOES" #1-2, the names being fictitious but intended to be by NYPD police officers who aided in the unlawful arrest of plaintiff on March 31, 2014, heretofore described herein constitutes negligence in that defendants THE CITY and NYPD were negligent in failing to exercise the proper degree of care and caution so as to prevent the occurrence complained of herein; and in other ways acting in a reckless, careless, negligent and hazardous manner.

34. That defendants THE CITY and NYPD, their agents, servants and/or employees were negligent, careless and reckless in failing to properly screen and investigate personnel before hiring, in that they negligently and improperly retained defendants, including P.O. VASQUEZ and "JOHN DOES" #1-2, the names being fictitious but intended to be NYPD police officers who aided in the unlawful arrest of plaintiff on March 31, 2014; in that they failed and neglected to provide proper and adequate supervision of its agents, servants and/or employees, including P.O. VASQUEZ and "JOHN DOES" #1-2, the names being fictitious but intended to be NYPD police officers who aided in the unlawful arrest of plaintiff on March 31, 2014; in that they caused, permitted and allowed plaintiff to be falsely arrested; and in that they failed to take reasonable and prudent measures to prevent such occurrences as herein complained of from taking place.

35. That plaintiff's injuries were caused solely and wholly by the negligence of the defendants herein, without any negligence on the part of the plaintiff contributing thereto.

36. That by reason of the foregoing, the plaintiff was caused to suffer extreme emotional distress and trauma, was incapacitated from his usual duties and vocations for an extended period of time and since some of his injuries are believed to be permanent and lasting in their effects, he will continue to suffer similar mental distress and damages in the future.

37. That by reason of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction.

38. The case falls within CPLR § 1602(2) and (7) so that defendants herein are jointly and severally liable to the plaintiff herein.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR INTENTIONAL
INFLICTION OF EMOTIONAL DISTRESS**

39. Plaintiff, ROLAND HAYES, repeats and reiterates the allegations set forth in paragraphs "1" through "38" of the complaint as if fully set forth at length herein.

40. The aforementioned actions of the defendants were so outrageous, malicious and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

41. Defendants acted with the desire and intent to cause plaintiff emotional distress or acted under circumstances known to them which made it substantially certain that they would cause such emotional distress.

42. Defendants acted with utter disregard of the consequences of their actions.

43. As a result, plaintiff was caused to suffer emotional distress.

44. By reason of the foregoing, defendants are liable to plaintiff in an amount to be determined by the trier of fact, but exceeding the jurisdictional limitations of all lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR NEGLIGENT
INFLECTION OF EMOTIONAL DISTRESS**

45. Plaintiff repeats and reiterates all of the allegations set forth in paragraphs "1" through "44" above, inclusive, as if the same were again fully set forth hereat.

46. As a result of their actions as aforesaid, defendants negligently, carelessly and recklessly inflicted great and lasting emotional distress upon the plaintiff.

47. As a result of Defendants' actions as aforesaid, Plaintiff was publicly embarrassed and humiliated, put in fear of her health and safety, put in fear of further assault and pain, was caused great, ongoing, and permanent anxiety, was caused to feel pathological fear of law enforcement and legal process, and was otherwise caused severe emotional distress, all to his injury in an amount to be determined by the trier of fact, but exceeding the jurisdictional limitations of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION FOR VIOLATION OF CIVIL RIGHTS

48. Plaintiff, ROLAND HAYES, repeats and reiterates the allegations contained in paragraphs "1" through "47" as if fully set forth at length herein.

49. The actions of defendants heretofore described resulting from the March 31, 2014, false arrest, detention, and imprisonment of the plaintiff constitutes an unlawful arrest, imprisonment, and unreasonable search and seizure, which deprived plaintiff of his right, privileges and immunities as granted under the United States Constitution, Amendments One, Four, Five and Fourteen, the New York State Constitution, the Civil Rights Act, 42 U.S.C. § 1981, 1983, 1985, 1986 and 1988, and the complained of conduct was either the result of an

official policy or unofficial custom, including but not limited to, the policies and customs concerning the hiring, training, supervision, retention and discipline of THE CITY and NYPD's agents, servants and/or employees.

50. That the defendants established a custom, policy and/or practice of encouraging, approving and/or tolerating the use by the NYPD of unreasonable searches and seizures, excessive force and acts of misconduct against civilians and subsequent attempts to conceal such actions by failing to adequately train, supervise and discipline its agents, employees and officers.

51. That the defendants were deliberately indifferent to the use of improper procedures in the detention and arrest of civilians and established a custom or policy and/or practice of encouraging, approving and/or tolerating the use of said improper procedures by the NYPD and subsequent attempts to conceal such actions by failing to adequately train, supervise and discipline their agents, servants and/or officers.

52. The defendants have deprived plaintiff of his liberty in violation of his Civil and Constitutional rights as set forth in the United States Constitution, 42 U.S.C. § 1983 and Constitution of the State of New York.

53. The defendants conspired with each other and acted in concert to discriminate against and deprive the plaintiff of his Constitutional and Civil rights.

54. That the defendants established a custom, policy and/or practice of encouraging, approving and/or tolerating the use by the NYPD of unreasonable searches and seizures, and acts of misconduct against civilians and subsequent attempts to conceal such actions by failing to adequately train, supervise and discipline its agents, employees and officers.

55. That the defendants were deliberately indifferent to the use of improper procedures in the detention and arrest of civilians and established a custom or policy and/or

practice of encouraging, approving and/or tolerating the use of said improper procedures by the NYPD and subsequent attempts to conceal such actions by failing to adequately train, supervise and discipline their agents, servants and/or officers.

56. That the defendants have deprived plaintiff of his liberty in violation of his Civil and Constitutional rights as set forth in the United States Constitution, 42 U.S.C. § 1983 and Constitution of the State of New York.

57. That the defendants conspired with each other and acted in concert to discriminate against and deprive the plaintiff of his Constitutional and Civil rights.

58. That the supervisors and policy making officers, defendants, THE CITY and NYPD, and defendants, P.O. VASQUEZ and OFFICER "JOHN DOES" # 1-2, the names being fictitious but who are intended to be NYPD officers who aided in the unlawful arrest of the plaintiff on March 31, 2014, as a matter of policy are deliberately indifferent to said practices and have failed to take steps to terminate the herein above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

59. The defendants THE CITY and NYPD have failed to properly or effectively train its agents, servants and/or employees, including defendants, P.O. VASQUEZ and OFFICER "JOHN DOES" # 1-2, the names being fictitious but who are intended to be NYPD officers who aided in the unlawful arrest of plaintiff on March 31, 2014, with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

60. The defendants, THE CITY and NYPD, have sanctioned the policy and practices heretofore described through their deliberate indifference to the effects of such policy and practices upon the constitutional rights of the plaintiff and others similarly situated.

61. The defendants' motivations were in contravention of the United States

Constitution and the Constitution of the State of New York.

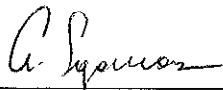
62. That the unlawful conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: (a) the right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and (b) the right of plaintiff to not be deprived of life, liberty or property without due process of law; and (c) the right of plaintiff to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

63. By reason of the foregoing, the plaintiff has been damaged and suffered serious and severe permanent physical injuries, emotional distress and emotional harm as a result of these deprivations of constitutional and civil rights.

64. As a result, the defendants became liable to the plaintiff in an amount to be determined by the trier of fact, but exceeding the jurisdictional limitations of all lower courts.

WHEREFORE, plaintiff demands judgment as against defendant, THE CITY OF NEW YORK, NYPD and P.O. VASQUEZ and OFFICERS "JOHN DOES" # 1-2, the names being fictitious but who are intended to be NYPD Officers who aided in the unlawful arrest of plaintiff on March 31, 2014, in favor of the plaintiff, ROLAND HAYES, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction together with costs and disbursements of this action.

Dated: Brooklyn, New York
March 27, 2015



HELD & HINES, L.L.P.

By: A. Tommy Sgouras, Esq.

Attorneys for Plaintiff

2004 Ralph Avenue

Brooklyn, New York 11242

(718) 531-9700

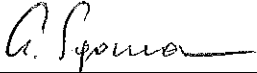
ATTORNEY VERIFICATION

A. TOMMY SGOURAS, ESQ., an attorney duly licensed to practice in the courts of the State of New York, hereby affirms the following under penalties of perjury:

That I am an associate of the law firm of HELD & HINES, L.L.P., attorneys for the Plaintiff, ROLAND HAYES, in the within action; I have read the foregoing COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters, I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that said Plaintiff is not presently within the County in which the Affirmant's office is located.

The grounds of my belief as to all matters stated upon my own knowledge are as follows; the records, reports, contracts, and documents contained in the Plaintiff's file.

Affirmed to this
27 March 2015



A. TOMMY SGOURAS, ESQ.

Index No.:

Year: 2015

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ROLAND HAYES

Plaintiff,

v.

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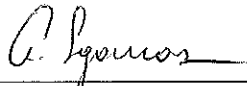
Defendants.

SUMMONS AND VERIFIED COMPLAINT

HELD & HINES, L.L.P.
Attorney for Plaintiff
2004 Ralph Avenue
Brooklyn, NY 11234
718-531-9700

I, Athanasios Tommy Sgouras, Esq., certify that to the best of my knowledge, upon information and belief, formed after an inquiry reasonable under the circumstances, certify that the presentation of the foregoing paper or the contentions therein are not frivolous as defined in subsection (c) of Section 130.01 of the Rules of the Chief Administrator of the Courts.

Dated: Brooklyn, New York
March 27, 2015



A. Tommy Sgouras, Esq.